

Anju Thakur vs Ut Of Jammu & Kashmir on 2 January, 2025

Author: Rahul Bharti

Bench: Rahul Bharti

Sr. No. 28

HIGH COURT OF JAMMU & KASHMIR AND LADAKH AT JAMMU

Case:- CRM(M) No. 7/2025

1. Anju Thakur, Age 30 years,
W/o Sh. Ashok Singh,
D/o Sh. Dharam Singh,
R/o Hochak, Pogal Paristan Ukhral,
Ramsu, Ramban
A/p Purkhoo, Court Road, Near Royal Farms, Jammu.
2. Ashok Singh, Age 38 years,
S/o Sh. Jagdev Singh.
3. Oma Devi, Age 62 years,
S/o Sh. Jagdev Singh.
4. Ambica Kumar, Age 30 years,
S/o Sh. Jagdev Singh.
5. Neeraj Singh, Age 27 years,
S/o Sh. Jagdev Singh.
All resident of H. No. 31, Lane No. 2, Sector 1,
Block - D, Durga Nagar, Roop Nagar, Jammu.

.....Petitioners

Through: Mr. Anoop Parihar, Advocate

Vs

UT of Jammu & Kashmir
Through SHO P/S Domana, Jammu.

..... Respondent

Through: Mr. Pawan Dev Singh, Dy. AG

Coram: HON'BLE MR. JUSTICE RAHUL BHARTI, JUDGE

ORDER

02.01.2025

01. The petitioner No. 1 - Anju Thakur is the wife of the petitioner No. 2 - Ashok Singh. The petitioner No. 3 - Oma Devi is the mother of the petitioner No. 2, whereas the petitioner No. 3 - Ambica Kumari and the petitioner No. 4 - Neeraj Singh are the sister and brother of the petitioner No. 2 - Ashok Singh.

02. The marriage of the petitioner No. 1 with the petitioner No. 2 is of 27.06.2019 having taken place in Jammu but the marital relationship between the petitioners No. 1 & 2 did not remain cordial leading the petitioner No. 1 to allege cruelty against her at the hands of the petitioners No. 2 to 5 and register an FIR No. 0383/2020 dated 29.12.2020 with the Police Station Domana for alleged commission of offences under section 498-A, 504, 506/109 Indian Penal Code (IPC).

03. On the basis of said FIR, a Final Police Report No. 107/2021 dated 21.06.2021 came to be presented by the Police Station Domana, Jammu against the petitioners No. 2 to 5 which came to be taken cognizance by the court of Judicial Magistrate Ist Class (Sub-Judge), Jammu. The petitioners No. 2 to 5 came to be booked for alleged commission of offences under section 498-A, 504, 506, 323/109 Indian Penal Code (IPC), 1860.

04. In addition to the aforesaid criminal case, the petitioner No. 1 also came to initiate proceedings under the Protection of Women from Domestic Violence Act, 2005 followed by maintenance proceedings' case also filed by the petitioner No. 1 against the petitioner No. 2.

05. During the state of aforesaid criminal case and litigation initiated at the instance of the petitioner No. 1 against the petitioners No. 2 to 5, a reconciliation exercise came to take place between the petitioner No. 1 and the petitioner No. 2 which resulted in a compromise dated 13.07.2024 whereby the petitioners No. 1 & 2 came to resolve all their outstanding disputes and differences and free themselves from the marital relationship for the sake of better future of each other in furtherance whereof a petition under section 13(b) of the Hindu Marriage, Act 1955 for dissolution of marriage by mutual divorce came to be preferred before the court of Additional Principal Judge (Family Court), Jammu wherein the petitioners No. 1 & 2 have in support of first motion have also recorded their statements supporting the compromise agreement dated 13.07.2024 in terms whereof the petitioner No. 1 has also agreed for withdrawing of her accusations and allegations against the petitioners No. 2 to 5 and also for withdrawal of her domestic violence case as well as maintenance case against the petitioners No. 2 to 5.

06. It in this backdrop that the petitioners, in particular petitioners No. 1 & 2, have come forward with the present petition invoking inherent jurisdiction of this Court under section 528 of the Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023 seeking quashment of a criminal case born out of FIR No. 0383 dated 29.12.2020 read with Final Police Report No. 107/2021 dated 21.06.2021 of the Police Station Domana, Jammu pending trial before the court of Judicial Magistrate Ist Class (Sub-Judge), Jammu bearing CNR JKJMo30062482021.

07. The petitioners No. 1 & 2 are present in person from whom this Court has enquired as to whether they have amicably resolved their disputes and differences acting on their free will and volition without bearing any undue influence and pressure.

08. The petitioners No. 1 & 2, who are of matured understanding, have re-affirmed their compromise and commitment towards the terms and conditions of the compromise and intend to bring all the litigation between them to an amicable end leaving nothing to bother them in future before parting with their marital relationship for which their mutual divorce petition is pending expiry of six months wait period.

09. In view of this, the petitioners No. 1 & 2's plea is well founded and, therefore, this is a fit case in which this Court must, in exercise of its inherent jurisdiction, grant indulgence to quash the criminal case. Accordingly, the petition is allowed. The criminal case born out of FIR No. 0383/2020 dated 29.12.2020 with the Police Station Domana read with Final Police Report No. 107/2021 dated 21.06.2021 before the court of Judicial Magistrate Ist Class (Sub-Judge), Jammu titled "UT of J&K Vs Ashok Singh and others,"

CNR JKJMo30062482021 is hereby quashed.

10. Disposed of.

11. A copy of this order be sent to the Judicial Magistrate Ist Class (Sub-Judge), Jammu for the sake of notice and consigning the said file to record.

(RAHUL BHARTI) JUDGE JAMMU 02.01.2025 Muneesh